

AiForm Studio × LeOra Group

Mutual Non-Disclosure Agreement

FINAL • 16 SEPTEMBER 2026

PARTY A	AiForm Studio (Pty) Ltd Registration no. 2026/692621/07
PARTY B	Neo Makgoba, trading as LeOra Group 169 Corobay Avenue, B3-02 Corobay Corner Waterkloof Glen, 0001 neom@leoragroup.co.za
PROJECT	LeOra Group / proposed NeoSmart Fuelling platform and related vehicle, energy, logistics and technology services
EFFECTIVE DATE	[TO BE COMPLETED ON SIGNATURE]

Purpose To enable the parties to exchange confidential information while evaluating, designing and potentially developing the NeoSmart Fuelling concept and related LeOra Group systems, without transferring ownership of either party's existing intellectual property.

Mutual Non-Disclosure Agreement

This Mutual Non-Disclosure Agreement (the “Agreement”) is entered into between AiForm Studio (Pty) Ltd, registration number 2026/692621/07 (“AiForm Studio”), and Neo Makgoba, trading as LeOra Group, of 169 Corobay Avenue, B3-02 Corobay Corner, Waterkloof Glen, 0001 (“LeOra”). Each is a “Party” and together they are the “Parties”. The Agreement takes effect on the date of the last signature below (the “Effective Date”).

1. Purpose

The Parties wish to exchange information for the purpose of exploring, evaluating, scoping, designing and potentially developing digital platforms, systems and related services for LeOra Group, including the proposed NeoSmart Fuelling service and associated vehicle, energy, logistics and technology services (the “Purpose”).

This Agreement governs those disclosures. It does not itself appoint AiForm Studio to perform development work, establish a partnership or joint venture, or require either Party to proceed with any transaction or project.

2. Confidential Information

“Confidential Information” means non-public information disclosed by or on behalf of a Party (the “Disclosing Party”) to the other Party (the “Receiving Party”), whether disclosed before or after the Effective Date and whether communicated orally, visually, electronically, in writing or by demonstration, that is marked confidential or would reasonably be understood to be confidential in the circumstances.

- business models, strategies, plans, commercial opportunities, pricing, budgets, forecasts and financial information;
- process flows, service models, operating procedures, dispatch methods, fuel or inventory workflows, supplier and partner information;
- customer, prospect, fleet, vehicle, location, transaction and service information;
- software concepts, specifications, source code, architecture, data models, interfaces, prototypes, designs, algorithms, prompts, workflows, security approaches and technical methods;
- research, analyses, notes, drawings, documents, presentations and other materials derived from or reflecting the information above.

3. Information Not Covered

Confidential Information does not include information that the Receiving Party can demonstrate: (a) is or becomes publicly available without breach of this Agreement; (b) was lawfully known to it without a duty of confidentiality before disclosure; (c) is lawfully received from a third party without a duty of confidentiality; or (d) is independently developed without use of or reference to the Disclosing Party's Confidential Information.

4. Confidentiality Obligations

The Receiving Party must use the Disclosing Party's Confidential Information only for the Purpose; protect it using at least reasonable care and no less care than it uses for its own similarly sensitive information; not disclose it except as permitted by this Agreement; and not copy, reverse engineer, exploit or use it to obtain an unfair commercial advantage outside the Purpose.

Each Party remains responsible for compliance with this Agreement by the persons to whom it permits disclosure.

5. Permitted Disclosure

The Receiving Party may disclose Confidential Information only to its employees, directors, professional advisers, contractors or collaborators who reasonably need it for the Purpose and who are bound by confidentiality duties appropriate to the information.

If disclosure is required by law, court order or a competent regulatory authority, the Receiving Party may make the required disclosure. Where legally permitted, it must give the Disclosing Party prompt notice and disclose only what is legally required.

6. Intellectual Property and No Licence

Each Party retains all rights, title and interest in intellectual property, materials, know-how, systems, methods and information that it owned, controlled or developed independently before or outside the contemplated project (“Background IP”). Disclosure under this Agreement does not transfer ownership of Background IP or grant any licence except the limited right to use Confidential Information for the Purpose.

For clarity, LeOra retains its rights in its existing business concepts, branding, operational information and materials. AiForm Studio retains its rights in its existing software components, frameworks, libraries, templates, methods, technical know-how, development practices, reusable systems and other Background IP.

Ownership, licensing and use of any future project-specific deliverables, source code, designs, data structures, documentation or other work product will be governed by a separate written proposal, statement of work or development agreement. This Agreement does not determine ownership of such future deliverables.

7. Data Protection

To the extent that information exchanged under this Agreement contains personal information, each Party must handle that information in accordance with applicable South African data-protection law, including the Protection of Personal Information Act 4 of 2013 (POPIA), and must use it only as reasonably necessary for the Purpose.

This Agreement does not by itself authorise either Party to process live customer or production data on behalf of the other. Any such processing may require additional contractual and security arrangements.

8. Security and Incidents

Each Party must take reasonable technical and organisational measures to prevent unauthorised access to, use of, alteration of or disclosure of Confidential Information. A Party that becomes aware of a material unauthorised disclosure or security incident affecting the other Party's Confidential Information must notify the other Party without undue delay and reasonably cooperate to contain and address the incident.

9. Return or Deletion

On written request, the Receiving Party must, within a reasonable period, return or securely delete Confidential Information in its possession or control, except for copies that must be retained by law, routine secure backups, or one archival copy retained solely for legal or compliance purposes. Any retained information remains subject to this Agreement.

10. No Warranty and No Obligation to Proceed

Confidential Information is provided for evaluation and discussion. Unless otherwise agreed in writing, neither Party gives a warranty that the information is complete, accurate or suitable for a particular purpose.

Either Party may stop discussions at any time. Nothing in this Agreement requires either Party to enter into a commercial relationship, award work, purchase services or continue negotiations.

11. Term and Survival

This Agreement remains in force for two (2) years from the Effective Date unless replaced by a later written agreement between the Parties.

The confidentiality and restricted-use obligations apply to Confidential Information disclosed during that period and continue for three (3) years after the relevant disclosure. Information that qualifies as a trade secret remains protected for so long as it continues to qualify as a trade secret under applicable law.

12. Breach and Remedies

The Parties acknowledge that unauthorised use or disclosure of Confidential Information may cause harm that is difficult to quantify. The Disclosing Party may seek any remedy available under applicable law, including appropriate urgent or injunctive relief, without limiting any other lawful remedy.

13. Governing Law and Disputes

This Agreement is governed by the laws of the Republic of South Africa.

The Parties will first attempt in good faith to resolve any dispute through direct discussion. If the dispute is not resolved, either Party may pursue the remedies available to it in a court of competent jurisdiction in South Africa.

14. General

This Agreement constitutes the entire agreement between the Parties concerning confidentiality for the Purpose and supersedes prior discussions on that subject. Any amendment must be in writing and agreed by both Parties.

A failure or delay in enforcing a right is not a waiver of that right. If any provision is held invalid or unenforceable, the remaining provisions continue in effect to the fullest extent permitted by law.

This Agreement may be signed in counterparts and by electronic signature. Each signed counterpart is treated as an original and together they form one agreement.

Signatures

By signing below, each signatory confirms that they are authorised to bind the relevant Party to this Agreement.

AiForm Studio (Pty) Ltd

Name

Dr Thabiso Eric Motaung

Capacity

Authorised representative

Registration

2026/692621/07

Signature

Date

LeOra Group

Name

Neo Makgoba

Capacity

Trading as LeOra Group

Business name

LeOra Group

Signature

Date